



Agreement on Permission to Use Copyrighted Material

Article 1. Purpose

The purpose of this agreement is to stipulate matters related to the granting of permission to use copyrighted materials among the items sold, donated, or entrusted by institutions or individuals (hereinafter referred to as “Licensor”) to National Folk Museum of Korea (hereinafter referred to as “Licensee”) (collectively referred to as the “Parties”).

Article 2. License for and Utilization of Copyrighted Material

- 1) The Licensor shall grant the Licensee the exclusive right to the use of copyrighted material related to item(s) sold, donated, or entrusted. However, the Licensor and Licensee shall own the rights to use and exploit the items on equal terms and the Licensee shall not be obliged to provide separate financial compensation to the Licensor for the usage and exploitation thereof.
- 2) The name of the Licensor must be indicated when the materials of the Licensor are used for publications produced by the Licensee or those published under the permission of the Licensee. If this is not observed, the Licensee shall bear civil and criminal liability under the Copyright Act.
- 3) If an individual (or institution) other than the Licensee infringes upon the copyright through the unauthorized use and/or modification of the content or change of the Licensor’s name, the Licensor and the Licensee may pursue legal action for said copyright infringement in accordance with relevant laws.

Article 3. Permission to Use Intellectual Property Rights

The Licensor may set the scope of disclosure and utilization of copyrighted material(s) related to the items, and may specify the type of open government license (from types 1 through 4). The Licensee may disclose the materials of the Licensor through the information and communications networks (Folklife Archive System, museum website, etc.) managed/operated by National Folk Museum of Korea in accordance with the conditions of the license agreed upon by the Parties. However, if an individual (or institution) other than the Licensee requests the use of the materials outside the agreed terms of use, the Parties may address the request upon mutual consultation.

Article 4. Representations and Warranties of the Licensor

The Licensor hereby confirms and warrants to the Licensee each of the following:

- 1) That the Licensor lawfully holds all rights and authority necessary to enter into a copyright license for the materials that have been sold, donated, or deposited.
- 2) That the contents of the materials that have been sold, donated, or deposited do not infringe any rights of any third party, including but not limited to copyright, trademark rights, and rights of personality.
- 3) That, prior to the execution of this Agreement, the economic rights in the materials that have been sold, donated, or deposited have not been assigned, licensed, pledged, or otherwise encumbered in any way that would restrict the Licensee's exclusive right of use.
- 4) That, during the term of the license granted under this Agreement, the Licensor will not assign, license, pledge, or otherwise dispose of the economic rights in the licensed work to any third party in any manner that would infringe the Licensee's exclusive right of use.

Article 5. Principle of Good Faith.

The Parties shall fulfill all matters set forth in this Agreement in good faith.

Article 6. Miscellaneous

Matters not specified in this Agreement shall be governed by the copyright laws and accepted practices of the Republic of Korea.

As proof of agreement to the above terms and conditions, the Parties shall execute and sign two copies of this Agreement, and each Party shall retain one copy.

Licensee : National Folk Museum of Korea (Signature)

*37 Samcheong-ro, Jongno-gu, Seoul,
Republic of Korea*

Licensor : _____ (Signature)